Santiago & Romero Law Group

Baytown, TX
Phone 832-555-2357

Settlement Demand

09/11/2023

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1404 - Demand for settlement

Dear Claims Representative:

Our office represents Joshua Lee in connection with a collision that occurred on 05/17/2023. Our client was driving in the right lane when your insured, who was changing lanes from the left, moved into the space our client occupied and sideswiped the passenger side of the vehicle. The contact was forceful enough to push our client's car toward the shoulder and to leave visible damage along the entire side panel. Police were called to the scene, and the report reflects that your insured acknowledged failing to check the blind spot before merging.

Following the impact, our client experienced immediate neck pain, stiffness, and reduced range of motion. Medical evaluation diagnosed a cervical strain, and our client has since completed a course of physical therapy and continues to experience headaches and limited mobility that interfere with work and daily routines. Records documenting treatment, time missed from work, and out-of-pocket expenses are enclosed.

Liability in this matter is clear. Your insured's failure to yield during a lane change caused the collision, and no comparative fault can fairly be assigned to our client. We therefore request that your company resolve this claim by paying the sum of $138,000.00 within thirty days of the date of this letter. If we do not receive a satisfactory response by that deadline, we are prepared to file suit to recover full compensation for our client's damages.

Expert review: Melanie Munoz, orthopedic surgeon

Sincerely,

Eric Phillips
Santiago & Romero Law Group